



KeyCite Yellow Flag
Proposed Legislation

Vernon's Texas Statutes and Codes Annotated
Property Code (Refs & Annos)
Title 8. Landlord and Tenant (Refs & Annos)
Chapter 92. Residential Tenancies (Refs & Annos)
Subchapter B. Repair or Closing of Leasehold (Refs & Annos)

V.T.C.A., Property Code § 92.052

§ 92.052. Landlord's Duty to Repair or Remedy

Currentness

- (a) A landlord shall make a diligent effort to repair or remedy a condition if:
- (1) the tenant specifies the condition in a notice to the person to whom or to the place where rent is normally paid;
 - (2) the tenant is not delinquent in the payment of rent at the time notice is given; and
 - (3) the condition:
 - (A) materially affects the physical health or safety of an ordinary tenant; or
 - (B) arises from the landlord's failure to provide and maintain in good operating condition a device to supply hot water of a minimum temperature of 120 degrees Fahrenheit.
- (b) Unless the condition was caused by normal wear and tear, the landlord does not have a duty during the lease term or a renewal or extension to repair or remedy a condition caused by:
- (1) the tenant;

(2) a lawful occupant in the tenant's dwelling;

(3) a member of the tenant's family; or

(4) a guest or invitee of the tenant.

(c) This subchapter does not require the landlord:

(1) to furnish utilities from a utility company if as a practical matter the utility lines of the company are not reasonably available; or

(2) to furnish security guards.

(d) The tenant's notice under Subsection (a) must be in writing only if the tenant's lease is in writing and requires written notice.

Credits

Acts 1983, 68th Leg., p. 3632, ch. 576, § 1, eff. Jan. 1, 1984. Amended by [Acts 1989, 71st Leg., ch. 650, § 3, eff. Aug. 28, 1989](#); [Acts 1993, 73rd Leg., ch. 48, § 14, eff. Sept. 1, 1993](#); [Acts 2007, 80th Leg., ch. 600, § 1, eff. Sept. 1, 2007](#).

[Notes of Decisions \(24\)](#)

O'CONNOR'S NOTES

Source: TRCS [art. 5236f, §§2, 3](#).

O'CONNOR'S CROSS REFERENCES

See also *O'Connor's Texas COA*, "Failure to Repair or Remedy," ch. 16-F, §1 et seq.

O'CONNOR'S ANNOTATIONS

Philadelphia Indem. Ins. v. White, 490 S.W.3d 468, 484 (Tex.2016). “[W]e hold the causal standard in [Prop. Code] §92.052(b) is not fault-based.... At 487: A tenant’s repair remedies under [Prop. Code ch. 92,] subch. B are conditioned on the existence of a duty under §92.052. In fact, §92.052’s sole function is to provide a basis for the tenant to obtain repairs or a statutory remedy under subch. B. [Property Code] §92.053(a) necessarily allocates the burden of proof under §92.052 to the tenant. In doing so, §92.053 makes no distinctions among §92.052’s various subsections. [¶] Taken together, §§92.052 and 92.053 create a presumption that damage to premises under the tenant’s control was caused by the tenant and the tenant must prove otherwise. Absent such proof, the landlord has no duty to repair....”

Housing Auth. of Beaumont v. Landrio, 269 S.W.3d 735, 748 (Tex.App.--Beaumont 2008, pet. denied). “The testimony of the adult [Ps] indicates they did not provide written notice of peeling lead paint in their apartments before the injuries. However, §92.052 does not apply to personal injury claims.” See also *Moreno v. Brittany Square Assocs.*, 899 S.W.2d 261, 263 (Tex.App.--Houston [14th Dist.] 1995, writ denied).

Bryan v. Dockery, 788 S.W.2d 447, 450 (Tex.App.--Houston [1st Dist.] 1990, no writ). Injured postal employee “asserts that [landlord] had a statutory duty to repair defective conditions on her property. [¶] [Landlord] argues that because she did not retain possession of the stairs, she did not have a duty to repair. Where a landlord retains possession or control of the leased premises, the landlord is charged with the duty of ordinary care in maintaining the portion retained so as not to damage the tenant.”

V. T. C. A., Property Code § 92.052, TX PROPERTY § 92.052

Current through the end of the 2025 Regular and Second Called Sessions of the 89th Legislature.